



Emmanuel Christian School

Investigation Procedure

Introduction:

Emmanuel Christian School operates an investigation procedure alongside its disciplinary procedure. The purpose of the separate investigation procedure is to allow management impartially to investigate any alleged or suspected misconduct on the part of an employee. The objective will be to establish all the facts of the case before a decision is taken as to whether or not there are proper grounds to invoke the disciplinary procedure.

When the investigation procedure will be invoked

The investigation procedure will normally be used only when an employee is suspected of committing an act of serious misconduct or act in serious breach of any of the organisation's policies, procedures or rules. It will not normally be used in cases of minor misconduct, which should instead be dealt with directly and promptly by the individual's key stage leader. Similarly, where the matter is routine or straightforward, there will be no need to conduct a separate investigation (for example if the problem relates to repeated poor timekeeping and the Head Teacher or key stage leader has a clear record of the dates/times when the employee arrived to work late).

The investigation procedure should not be used in cases of perceived unsatisfactory job performance.

The employee will be informed in writing (email is sufficient) as soon as possible as to the fact of an investigation, and told who will be conducting it.

Who will carry out the investigation

It is the organisation's policy that, where the disciplinary procedure is invoked following an investigation, the individual who carries out the disciplinary procedure will not be the same person as the individual who conducted the investigation.

The organisation will appoint specific individuals to act as investigation managers as part of this procedure.

Normally it will be the employee's key stage leader who will investigate, but the organisation reserves the right to nominate any other person to conduct the investigation where it considers this to be appropriate.

Date of last review: 30/08/24

Date of next scheduled review: 30/08/26



Emmanuel Christian School

Investigation Procedure

Timescales

The individual conducting the investigation is responsible for ensuring that all necessary steps are taken promptly and without any unreasonable delays. The organisation would normally expect a disciplinary investigation to be completed within two to four weeks. In exceptional or complex situations, it may take longer.

Suspension from work

There may be instances where suspension with pay is necessary while the investigation is carried out. This may be because, for example, working relationships have broken down or there is a risk to an employee's or the organisation's property or responsibilities to other parties. Suspension with pay will be imposed only after careful consideration and will be reviewed to ensure that it does not become unnecessarily protracted. It is not an assumption of guilt or a disciplinary penalty in itself. It will be used as a last resort. Consideration will also be given to a partial suspension and whether or not the employee can continue with some of his/her duties.

Any decision to suspend will be confirmed in writing within five working days by the Investigation Manager and such written confirmation will state that the suspension is precautionary, not disciplinary, in nature pending the outcome of the investigation and any subsequent disciplinary proceedings.

The investigation procedure

In investigating an employee's alleged misconduct, the individual will:

- examine any relevant written records, for example previous disciplinary warnings, appraisal reports, and managers' notes;
- check whether there are any earlier warnings that have not expired;
- consult any other managers with whom the employee has come into contact to help establish relevant facts;
- talk privately and in confidence to any employees who may have evidence relating to the employee's alleged misconduct or who may have been witness to any relevant incident, and produce an accurate written summary of any such evidence;
- seek the consent of any such employee to use the summary of the evidence so collected as a signed written statement;
- conduct an investigatory interview with the employee, making sure that the employee knows that the purpose of the interview is to establish the facts and that the interview is not part of the organisation's disciplinary procedure; and

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Emmanuel Christian School

Investigation Procedure

- take an objective and balanced view of any information that comes to light, and avoid allowing personal views, opinions, and likes or dislikes to influence the assessment of the employee's conduct.

Investigatory interview with the employee

The employee may be invited to attend an investigatory interview with the individual who is responsible for the investigation.

Where an investigatory interview is held with the employee, the individual conducting the interview will, on completion of the interview, produce a written statement summarising the information given by the employee.

The right to be accompanied

The statutory right to be accompanied by a fellow worker does not apply to interviews that are purely investigatory in nature. Despite this, the organisation will consider any request from an employee under investigation to bring a colleague along to any investigatory interview (although it may, at its discretion, refuse to agree to this). If an employee has a disability, it may be a reasonable adjustment under the Equality Act 2010 to allow the employee to be accompanied by a colleague to an investigatory meeting.

Following the investigation

At the conclusion of the investigation, the individual conducting the investigation will decide whether or not it is appropriate to instigate formal disciplinary action against the employee. As soon as possible after the conclusion of the investigation and no later than five working days after the conclusion of the investigation, the organisation will inform the employee in writing as to the outcome.

Where it is decided to instigate disciplinary action, the employee will be given full details in writing of the case against them and invited to attend a disciplinary hearing. Details of the organisation's full disciplinary procedure are available on request.

Date of last review: 30/08/24

Date of next scheduled review: 30/08/26



Emmanuel Christian School

Investigation Procedure

Witness statements

Where disciplinary proceedings are instigated following an investigation and where evidence about an employee's alleged misconduct has been obtained from third parties in the form of written statements, either the statements themselves or a summary of their content will be given to the employee. However, the organisation reserves the right to conceal the identity of any or all of the parties if there is a legitimate reason to do so, such as where there may be a risk to the safety of others if the identity of witnesses is disclosed. In those circumstances, the organisation will consider providing a summary of the information to the employee.

Records

Full records of the disciplinary investigation will be held confidentially on the employees file for the duration of any disciplinary proceedings:

If the disciplinary proceedings result in a formal warning, the records of both the investigation and the disciplinary proceedings will be held for the same duration as the warning, in accordance with the time periods for warnings defined in the organisation's disciplinary procedure and will be included on any employment references requested during this timeframe.

If the disciplinary proceedings result in dismissal, the records will be held for a period of six months after termination of the employee's employment and will be included on any employment references requested in connection to the employee.

However, if it is decided at the conclusion of the disciplinary investigation (or on completion of disciplinary proceedings) that there is no case to answer, the records will be destroyed.

Data protection

We process personal data collected during disciplinary investigations in accordance with our data protection policy. In particular, data collected as part of the investigation stage is held securely and accessed by, and disclosed to, individuals only for the purposes of completing the disciplinary procedure. Inappropriate access or disclosure of employee data constitutes a data breach and should be reported in accordance with our data protection policy immediately. It may also constitute a disciplinary offence, which will be dealt with under our disciplinary procedure.

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